CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
SPECIAL COMMISSION MEETING
January 4, 2010
12:00 p.m.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. ROLL CALL:

The City Commission of the City of Opa-locka, Miami-Dade County, Florida, met in a special session on Monday, January 4, 2010 at 12:03 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida. The following members of the City Commission were present: Commissioner Rose Tydus, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes, Commissioner Dorothy Johnson and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, Interim City Attorney Joseph S. Geller and Assistant City Clerk Joanna Flores.

2. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

3. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

4. DISCUSSION:

A) SELECTION OF TOP FOUR CANDIDATES TO BE INTERVIEWED FOR THE POSITION OF CITY MANAGER FOR THE CITY OF OPA-LOCKA, FLORIDA.

As per the special meeting on December 17, 2009, Mayor Kelley stated that the City Commission selected the time frame for the selection process and at that time they would be selecting the top four candidates to be interviewed for the position of City Manager for the City of Opa-locka. Because there is a pool of 17 candidates, the City Commission wants to get to the top four candidates to be interviewed. He encouraged his colleagues to bring forth their choices to be voted on by the Commission until they reach the top four.

In reviewing the applicants who submitted their resumes, Commissioner Johnson stood by her previous discussion in that her concern relating to safeguarding the application process was avoided; therefore, she is going with the name she previously brought forth which is Clarance Patterson to be considered. She stated for the record that she sees a

great liability for the city. Based on the minimum qualifications of the applicants, only two the seventeen meet those minimum qualifications.

She asked for a legal opinion in terms of an applicant being brought forth to a governing body with the consideration for approval.

Attorney Geller advised, although he wasn't present at the beginning of the process, the only resolution he can see as action to the Commission is one that said they themselves would act as the screening process. To his knowledge, neither the Charter of Code provides for a restriction on how the Commission goes about this process. The Commission is charged with exercising its best judgment in deciding who would be the best person to lead the city. He said he hadn't seen anything that restricts the Commission's ability to say they want somebody to be interviewed as the top four who didn't put in an application. However, if there was such a restriction, as a Commission, their privilege to change their minds on that because it's in their sound discretion, how they proceed and how they want to interview, absent of something in the Charter or Code that limits them; therefore, as to that question or any procedure before them, if there's nothing except the expression of the will of the Commission then they are privilege to change their mind if that is what the majority is.

After hearing from legal, Commissioner Johnson recommended Clarance Patterson.

Mayor Kelley stated that he didn't have a problem adding Clarance Patterson to the list of candidates to be interviewed; however, he wants to continue with the process. Based on what the attorney has stated, the only resolution is setting the Commission as the search committee then that would obviously mean they can add any name to the floor whether the person submitted or not. He asked whether he understood Attorney Geller correctly.

Attorney Geller said that was half of it but even if the Commission had they still have the right to change their mind by majority vote. In this case, he didn't think the Commission set that requirement as far as he is aware of. Either way, it is up to the Commission to do what it thinks is best and it is their choice as long as neither the Charter nor the Code prohibits them.

NOTE: This portion of the minutes is transcribed in verbatim.

Commissioner Johnson: For clarity, I'm not asking for the Commission to avoid the interview process at all. I think in all fairness with integrity whomever the Commission choose should be the ones that are interviewed. So I want to make sure that's on the record verbatim that I'm not asking to avoid the process but because what has happened in the past, I feel more comfortable this route. So I just want to make sure that you understand. I'm not asking you to avoid the interview, I'm asking for the name to be a part of the consideration.

This concludes the verbatim portion of these minutes.

Mayor Kelley asked for clarification in terms of adding a name as to whether that individual would be a part of the four or would it be four plus one.

As it stands, Attorney Geller said that adding a name would be a part of the four; however, the Commission has the privilege of changing their minds.

Commissioner Tydus expressed her concern relating to the quantity of response. She asked the Clerk's Office how was the search for a City Manager advertised?

Clerk Flores advised that the city advertised in the Miami Herald classified section and in Nation Cities Weekly.

Commissioner Tydus continued by saying that the way the city advertised, the city's image and/or the leadership might have something to do with the quantity of response; however, 13 is a very minute of responses. The City of North Miami recently had a search for a City Manager and their response was over 100 of which of that 100 or more there were a tremendous amount of qualified and experienced individuals. She said her concern is not only the quantity of response but the experience of the respondents. In light of the city's present state, the Commission needs to be considering individuals that have experience as a City Manager of which of the 13 responses received, she was only able to come up with 3 individuals that had some sort of City Manager experience.

She suggested that the city get in contact with the respondents that submitted resumes to the City of North Miami and select from the experienced individuals in an effort to look outside from what they received because the city really didn't receive enough experienced individuals in this particular area.

Mayor Kelley advised that in most cities the Mayor has the role of bringing the recommended individual to the Council for ratification which is established by Charter; however, in the City of Opa-locka the City Commission as a whole goes through the selection process. When the commissioner mentioned about the number of applicants, the City of North Miami had a research firm conduct the process of a search until it got down to the Commission for a decision because their Charter and structure is set up differently from the City of Opa-locka because he, as Mayor doesn't have that power.

Commissioner Tydus suggested that the Commission take advantage of the legwork of the others in order to get the best candidate for the position. She said she didn't see the urgency to select from such a few experienced candidates.

Commissioner Holmes stated that he is aware of numerous of individuals who knew about the city's process and those individuals who applied for the other city might not even want to apply for the City of Opa-locka for the position of City Manager.

He continued by saying that he is willing to add Mr. Patterson into the process although that should have taken place at the December 17, 2009 special meeting when his name came up; however, that didn't happen.

With regards to Commissioner Tydus' suggestion, Mayor Kelley stated that individuals who wanted to apply could've applied and he really didn't like the idea of going to get other individuals. As the city went through the process, those 17 individuals applied for the position; good, bad or indifferent, those individuals applied. He said he was of the opinion that the Commission should go forth with selecting four individuals from this process and set up interviews.

After hearing Commissioner Holmes' comment, Commissioner Johnson made a motion to add Mr. Clarance Patterson as one of the four candidates to be interviewed for the position of City Manager.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to add Mr. Clarance Patterson as one of the four candidates to be interviewed for the position of City Manager for the City of Opa-locka.

Following brief discussion and clarification in terms of the process to include Mr. Clarance Patterson as one of the four candidates to be interviewed, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

Commissioner Holmes recommended Octavian Spanner and Brian K. Finnie to be included into the four candidates to be interviewed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to include Octavian Spanner and Brian K. Finnie into the four candidates to be interviewed.

Commissioner Johnson stated that one of the applicants named sent an official document clocked in withdrawing his name from being considered as the City Manager.

Commissioner Holmes advised that he never received the document being referenced and the application was still in his packet of applicants. He further suggested that the Commission vote on one candidate at a time.

Commissioner Johnson recalled the City Clerk going on record at the December 17, 2009 special meeting indicating that she had received the document from the applicant withdrawing his name for the process and this document was officially clocked in by the City Clerk's Office.

Commissioner Tydus reiterated her concern in terms of the quantity of which the Commission is selecting and with that in mind, she suggested, prior to voting, that they put forth their recommendations.

Commissioner Johnson withdrew her seconded and Commissioner Holmes withdrew his motion.

The following recommendations were made by members of the City Commission:

Commissioner Holmes – Octavian Spanner and Bryan K. Finnie

Commissioner Tydus – Clarence Hulse, Roger Hernstadt and Newall Daughtrey

Vice Mayor Taylor – Clarance Patterson

Commissioner Johnson – Clarance Patterson

Mayor Kelley – Roger Hernstadt, Newall Daughtrey and Octavian Spanner

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to select Octavian Spanner as one of the four candidates to be interviewed for the position of City Manager for the City of Opa-locka.

There being no discussion, the motion passed by a 4-1 vote.

Commissioner Johnson	Yes
Commissioner Tydus	No
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to select Bryan K. Finnie as one of the four candidates to be interviewed for the position of City Manager for the City of Opa-locka.

There being no discussion, the motion failed by a 4-1 vote.

Commissioner Tydus	No
Vice Mayor Taylor	No
Commissioner Holmes	Yes
Commissioner Johnson	No
Mayor Kelley	No

It was moved by Commissioner Tydus, seconded by Commissioner Johnson to select Clarence Hulse as one of the four candidates to be interviewed for the position of City Manager for the City of Opa-locka.

There being no discussion, the motion failed by a 4-1 vote.

Vice Mayor Taylor	No
Commissioner Holmes	No
Commissioner Johnson	No
Commissioner Tydus	Yes
Mayor Kelley	No

It was moved by Commissioner Tydus, seconded by Commissioner Johnson to select Roger Hernstadt as one of the four candidates to be interviewed for the position of City Manager for the City of Opa-locka.

There being no discussion, the motion passed by a 4-1 vote.

Commissioner Holmes	No
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

It was moved by Commissioner Tydus, seconded by Commissioner Johnson to select Newall Daughtrey as one of the four candidates to be interviewed for the position of City Manager for the City of Opa-locka.

There being no discussion, the motion failed by a 3-2 vote.

Commissioner Johnson	No
Commissioner Tydus	Yes
Vice Mayor Taylor	No
Commissioner Holmes	No
Mayor Kelley	Yes

Mayor Kelley announced that the following three (3) candidates would be interviewed for the position of City Manager for the City of Opa-locka at a special meeting to be held on January 11, 2010 starting at 12:00 p.m. for 30 minute intervals with a 10 minute recess in between interviews: Octavian Spanner, Roger Hernstadt and Clarance Patterson.

5. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Commissioner Holmes to adjourn the meeting at 12:55 p.m.

MAYOR

ATTEST:

CITY CLERK